

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN
BENCH, MULTAN
JUDICIAL DEPARTMENT

Civil Revision No.811 of 2021

Rahim Bakhsh (deceased) through legal heirs & others

Versus

Mst. Bakhsh Elahi (deceased) through legal heirs & others

J U D G M E N T

Date of hearing: 08.04.2026.
Petitioners by: M/s. Syed Muhammad Ali Gillani, Syed Riaz ul Hassan Gillani, Ch. Muhammad Riaz Jahania and Saiqa Bhatti, Advocates.
Respondents by: M/s. Abdul Rashid Sheikh and Malik Javed Akhtar Wains, Advocates for respondents No.1 & 2.
Hafiz Muhammad Shuaib, Advocate for respondent No.8.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through the instant revision petition, the petitioners have assailed the consolidated judgment and decree dated 09.07.2021, passed by the learned Additional District Judge, Multan, whereby the appeals preferred by petitioners and respondents were accepted, the judgment and decree dated 21.06.2001, passed by learned Trial Court were set aside and respondents' suits for declaration were decreed.

2. Briefly stated, Faiz Bakhsh son of Mubarak Ali, predecessor-in-interest of the parties, was owner of agricultural land situated in Village Biliwala and Village Jangal Jasvantgarh, Tehsil and District Multan. During his lifetime, he effected gifts in favour of his sons: land situated in Village Jangal Jasvantgarh was gifted to Rahim Bakhsh (petitioner No.1) vide Mutation No.297 dated 25.07.1960, while land in Village Biliwala was gifted to Karim Bakhsh, Muhammad Bakhsh and Muhammad Shafi (petitioners No.2 to 4) vide Mutation No.167 dated 25.07.1960. After the death of the donor in 1963, the respondents (his daughters) challenged the said mutations before the revenue

hierarchy, but their objections, appeals and revisions were dismissed up to the level of the Board of Revenue and the matter attained finality in 1969. The donees remained in continuous possession and exercised proprietary rights over the suit property. After a lapse of about three decades, respondent No.1 instituted a suit on 23.12.1993, followed by respondent No.2 on 20.07.1995, challenging the gifts and claiming inheritance. Both suits were consolidated and, after recording evidence, were dismissed by the learned Trial Court on 21.06.2001. The appellate proceedings culminated in the impugned judgment dated 09.07.2021, whereby both suits were decreed.

3. Learned counsel for the petitioners contends that the donor, being the lawful owner, validly transferred the property through gift, which remained unrevoked during his lifetime and was never challenged by him. He submits that absence of challenge by the donor himself negates allegations of fraud or coercion. He contends that under settled Muhammadan Law, a gift is complete upon proof of declaration, acceptance and delivery of possession, even if not reduced into writing. He further submits that mutation entries, coupled with long, continuous and uninterrupted possession and consistent conduct of the parties for decades, sufficiently establish the validity of the gift. He maintains that a gift in favour of some heirs to the exclusion of others is legally valid. He further argues that both suits, instituted in 1993 and 1995 respectively, were hopelessly barred by limitation, as the mutations in question were sanctioned in 1960 and had already been challenged by the respondents before the revenue hierarchy up to the Board of Revenue, where their claims stood finally rejected in 1969. Despite having full knowledge, the respondents allowed the matter to attain finality and, after lapse of more than three decades, instituted fresh civil suits without any plausible explanation for delay. He submits that limitation is not a mere technicality but goes to the root of the matter and has substantive effect on rights of parties. Learned counsel further contends that the respondents neither specifically challenged the mutations nor impleaded any revenue officials, and merely levelled bald allegations of fraud and forgery

without furnishing particulars or producing cogent evidence. He submits that fraud must be specifically pleaded and strictly proved, which has not been done in the present case. He also argues that once the respondents had availed and exhausted their remedies before the revenue hierarchy, they were precluded from re-agitating the same controversy through a fresh civil suit, particularly by leading additional evidence, as such course is hit by the doctrine of election and amounts to abuse of process of law. The civil court, in such circumstances, could not assume the role of an appellate forum over revenue authorities nor conduct a de novo trial on matters already adjudicated, unless jurisdictional defect, illegality or mala fide was specifically established, which is conspicuously absent in the present case. He further submits that presumption of correctness attached to long-standing revenue record and official acts could not be displaced on mere assertions, especially when such entries remained unchallenged for decades and were acted upon by the parties. He further submits that civil suits filed after exhaustion of revenue remedies to reopen settled controversies are legally impermissible and barred both by limitation and settled principles of law. He has placed reliance on Mst. Sahib Noor v. Haji Ahmad (1998 SCMR 1703), Noor Muhammad Khan v. Habib Ullah Khan (PLD 1994 SC 650), Muhammad Islam v. Inspector-General of Police, Islamabad and others (2011 SCMR 8), Mst. Zaitoon Begum v. Nazar Hussain and another (2014 SCMR 1469), Sikandar Hayat and another v. Sughran Bibi and 6 others (2020 SCMR 214), Mir Mujib-Ur-Rehman Muhammad Hassani v. Returning Officer and others (PLD 2020 Supreme Court 718), and Nasir Ali v. Muhammad Asghar (2022 SCMR 1054).

4. Conversely, learned counsel for the respondents supports the impugned appellate judgment and submits that the alleged gift was not proved in accordance with law. He argues that the essential ingredients of a valid gift, namely declaration, acceptance and delivery of possession, were not established through cogent and reliable evidence. He further submits that the reliance placed by the Trial Court on mutation entries and oral statements is misplaced, as mutation does not

confer title. He next contends that the burden to prove the gift squarely lies upon the beneficiaries, which they failed to discharge, therefore, the learned Appellate Court rightly reversed the findings of the learned Trial Court. He submits that the mutation entries were the result of fraud and were liable to be set aside, and that the matter essentially pertains to inheritance, thus limitation would not strictly apply. He further submits that even otherwise, the respondents have been receiving their share of the produce from the petitioners. He has referred to Syed Phul Shah v. Muhammad Hussain, etc. (NLR 1992 AC 136), Muhammad Sham v. Mushtaque Ahmed through Legal Heirs and others (1996 SCMR 856), Abdul Rahim and another v. Mrs. Jannatay Bibi and 13 others (2000 SCMR 346), Mst. Nasira Khatoon and another v. Mst. Aisha Bai and 12 others (2003 SCMR 1050), Muhammad Munir v. Muhammad Saleem and others (2004 SCMR 1530), Ghiasuddin and others v. Ghulam Mohyuddin and others (2005 SCJ 451), Muhammad Zubair and others v. Muhammad Sharif (PLJ 2006 SC 12), Rehmatullah and others v. Saleh Khan and others (2007 SCMR 729), Mst. Gohar Khanum and others v. Mst. Jamila Jan and others (2014 SCMR 801), Abdul Majeed Khan through L.Rs. and others v. Ms. Maheen Begum and others (2014 SCMR 1524), Mahmood Shah v. Syed Khalid Hussain Shah and others (2015 SCMR 869), Peer Baksh through LR's and others v. Mst. Khanzadi and others (2016 SCMR 1417), Khan Muhammad through L.Rs and others v. Mst. Khatoon Bibi and others (2017 SCMR 1476), Fareed and others v. Muhammad Tufail and another (2018 SCMR 139), Shabla and others v. Ms. Jahan Afroz Khilat and others (2020 SCMR 352), Faqir Ali and others v. Sakina Bibi and others (PLD 2022 Supreme Court 85), Misree Khan and others v. Abdul Ghafoor and others (PLD 2025 Supreme Court 24), Hidayat Khan and others v. Mst. Nasreen and others (PLD 2025 Supreme Court 502) and Mst. Ramzanu Bibi v. Ibrahim (deceased) through L.Rs. and others (2025 SCMR 955).

5. Arguments heard. Available record perused.
6. The controversy essentially revolves around the validity of the alleged gifts, the plea of fraud, and the question of limitation. It is well-

settled that a valid gift under *Muhammadan Law* requires proof of three essential ingredients: declaration (offer), acceptance and delivery of possession. There is no cavil to the proposition, strongly emphasized in recent jurisprudence, that where a transaction results in exclusion of female heirs, the burden upon the beneficiaries becomes heavier and the Court must scrutinize the evidence with greater care. However, such scrutiny must still be undertaken within the settled framework of law governing proof of facts, appreciation of evidence, and limitation. In this regard, reliance may be placed upon *Mst. Nagina Begum v. Mst. Tahzim Akhtar* (2009 SCMR 623) and *Mst. Kalsoom Begum v. Piran Ditta* (2022 SCMR 1352).

7. Adverting first to the question of proof of gift, it is evident that the learned Appellate Court has proceeded on a hyper-technical approach by isolating the absence of specific pleadings regarding time, place and witnesses of the oral gift, while overlooking the surrounding circumstances and long course of conduct of the parties. The record shows that the mutations were sanctioned in 1960; the donor never repudiated the transactions during his lifetime; the donees remained in open, continuous and uninterrupted possession; and the transactions were acted upon for decades, including dealings with financial institutions and third parties. Such long-standing possession and conduct constitute strong corroborative evidence of a completed gift. The law does not prescribe any particular mode of delivery of possession, nor does it invalidate a gift merely because it prefers certain heirs over others. Therefore, even if the petitioners' evidence is not perfect in form, its cumulative effect cannot be overlooked, particularly when the proceedings before the revenue hierarchy had attained finality as far back as 1969, and no challenge was thereafter initiated until the institution of the suits in 1993 and 1995. The learned Trial Court, by appreciating the entire evidence holistically, reached a conclusion which cannot be termed perverse. In this regard, guidance may be sought from *Ghulam Rasool v. Muhammad Akram* (1998 SCMR 1080), *Fiaz Hussain v. Akbar Hussain* (2004 SCMR

964) and Muhammad Ishfaq v. Ch. Muhammad Nawaz **(2008 SCMR 1095)**.

8. The contention of the respondents regarding non-production of “Rapat Roznamcha” and non-examination of revenue officials does create a dent in the defence case; however, this omission must be weighed against the admitted existence of mutations in official record since 1960, their affirmation in revenue proceedings up to the Board of Revenue, and the absence of any challenge by the donor himself. The presumption attached to official acts and entries cannot be brushed aside and carries a presumption of correctness unless rebutted through cogent and convincing evidence. Thus, while the Appellate Court was justified in emphasizing strict proof, it erred in discarding the entire defence on technical deficiencies without considering the probative value of long possession and admitted record. Reliance is placed on Noor Din and another v. Additional District Judge, Lahore and others **(2014 SCMR 513)** and Muhammad Din v. The Deputy Settlement Commissioner and others **(2022 SCMR 1481)**.

9. As regards the plea of fraud, the law is settled beyond ambiguity that fraud must be specifically pleaded and strictly proved. The respondents have not attributed fraud to any particular individual with necessary particulars, nor have they produced cogent evidence to substantiate the allegation. Mere assertion of fraud, especially after a considerable lapse of time, is insufficient. The fact that the donor never challenged the transaction during his lifetime further weakens the allegation. The learned Trial Court rightly rejected the plea of fraud, whereas the Appellate Court misdirected itself by lowering the standard of proof and shifting the burden improperly. Reference may be made to Ghulam Ghous v. Muhammad Yaseen **(2009 SCMR 70)** and Mst. Fahiman Begum v. Islam-ud-Din **(2023 SCMR 1402)**.

10. The question of limitation is of decisive importance in the present case. The mutations in question were sanctioned in the year 1960; the respondents admittedly challenged the same before the revenue authorities and pursued their remedies up to the level of the Board of Revenue, where their claims were finally declined in 1969. In

such circumstances, knowledge of the transactions is clearly attributable to the respondents. It is also an admitted position that the respondents themselves appeared as objectors in the said proceedings and actively contested the matter against the donees, thereby not only establishing their awareness of the impugned transactions but also demonstrating that they had availed and exhausted the remedies available to them at the relevant time. Despite this, they failed to approach the Civil Court with due diligence, even though the competent forum had directed recourse thereto, and remained indolent for more than three decades without any plausible explanation. Such prolonged inaction, particularly after active participation in earlier proceedings, constitutes acquiescence and reflects a conscious waiver of rights, if any. The respondents have also not denied the earlier revenue proceedings or their involvement therein, which further fortifies the conclusion regarding their knowledge and conduct. The respondents, having once failed before the revenue hierarchy, were not entitled to reopen the entire controversy through fresh civil suits after an extraordinary lapse of time, particularly when such challenge is ex facie barred by limitation. Such a course is hit by the doctrine of election and undermines the finality of proceedings. Reliance is placed upon Nausher v. Province of Punjab through District Collector, Khanewal and another (PLD 2022 Supreme Court 699), Qazi Mumtaz Hussain and others v. Government of Sindh through Secretary Revenue and others (2025 SCMR 939), and Province of Punjab through District Officer Revenue/Collector, District Bhakkar & 3 others v. Zulfiqar & 8 others (CPLA No.1600-L/2014 decided on 20.01.2026).

It is well-settled that even a void or illegal transaction or order is required to be assailed within a reasonable time, and the doctrine of laches and acquiescence is fully attracted in such cases; a party who remains indolent and allows matters to attain finality cannot subsequently seek to unsettle settled rights on the plea of voidness. A fourteen Member Bench of the Hon'ble Supreme Court in the case

reported as Gen. (R.) Parvez Musharraf v. Nadeem Ahmed (Advocate) and another (PLD 2014 Supreme Court 585) has observed as under:-

“19. The contention that the delay be condoned since the petitioner was not heard or that the judgment on that count is void ab initio and that no limitation runs against a void order is not tenable because even against a void order, limitation would run and would be computed from the date of knowledge. In Muhammad Raz Khan v. Government of N.-W.F.P. (PLD 1997 SC 397), this Court specifically adverted to the question whether a party can be extended indulgence which pleads that the order was not challenged in time as it was void. The Court repelled the argument and held:-

"Principle of justice and fair play does not help those who were extraordinary negligent in asserting their right and despite becoming aware about alleged void order adverse to their interest remain in deep slumber. Therefore, according to our considered opinion, facility regarding extension of time for challenging orders cannot be legitimately stretched to any length of unreasonable period at the whims, choices or sweet will of affected party. Thus, order termed as nullity or void could at best be assailed by computing period of limitation when he factually came to know about the same. When a person presumes that adverse order is a nullity or totally devoid of lawful authority and ignores it beyond the period specified by law of limitation, then he does so at his own risk. Therefore, in all fairness terminus a quo will have to be fixed, the date of knowledge of alleged void order; which too must be independently established on sound basis. In this behalf we derive strength from the observations contained in PLD 1975 Baghdad-ul - Jadid 29 (Sayed Sajid Ali v. Sayed Wajid Ali) and 1978 SCMR 367 (S. Sharif Ahmad Hashmi v. Chairman, Screening Committee)."

Likewise, although inheritance rights are protected with great sanctity, such rights are required to be asserted within a reasonable time after acquiring knowledge, and stale claims cannot be entertained so as to unsettle long-standing and settled positions. In the case reported as Syed Kausar Ali Shah and others v. Syed Farhat Hussain Shah and others (2022 SCMR 1558), the Hon'ble Apex Court has observed as under:-

10. In our opinion there is a clear distinction between (a) cases in which an heir alleges that his/her rights to inheritance have been disregarded and his/her share not mentioned in the inheritance mutation, and (b) those cases in which such an heir sits idly by, does not challenge mutation entries of long standing, or acquiesces, and only comes forward when third party rights in the subject land have been created. To succeed in respect of the latter (b) category cases an heir must demonstrate that he/she was not aware of having been deprived, give cogent reasons for not challenging the property record of long standing, and show complicity between the buyer and the seller (the ostensible owner) or that the buyer knew of such heir's interest yet proceeded to acquire the land. If these two categories are kept in mind, then the

judgments of this court, respectively relied by both sides, which are apparently at variance, become reconcilable.”

11. The argument regarding *parda-nashin* ladies and shifting burden, though weighty, does not, in the facts of the present case, alter the conclusion. The respondents had actual knowledge of the transactions, actively pursued remedies before revenue forums, and allowed the matter to attain finality. Their subsequent challenge after decades cannot be insulated from the law of limitation merely on account of their status. Reference may also be made to Mst. Kalsoom Begum v. Piran Ditta (2022 SCMR 1352).

12. The Appellate Court also failed to accord due weight to the presumption of correctness attached to revenue record and prior proceedings. Its approach reflects selective appreciation of evidence, ignoring material aspects such as long possession, prior litigation, and conduct of the parties, thereby vitiating its findings on account of misreading and non-reading of evidence. Reliance is placed upon M/S SAZCO Pvt. Ltd. v. Askari Commercial Bank Ltd. (2021 SCMR 558).

The contention that the respondents have been receiving their share of the produce is not borne out from the record, as no cogent evidence has been produced in support thereof, particularly when the revenue entries relating to the gift have remained intact throughout.

13. From the foregoing discussion, it becomes manifest that the learned Appellate Court fell into patent error by adopting a fragmented and hyper-technical approach, ignoring the cumulative effect of material evidence, settled principles governing proof of gift under *Muhammadan Law*, and the binding effect of long-standing revenue record. The findings returned by the learned Appellate Court suffer from misreading and non-reading of evidence, misapplication of law relating to fraud and limitation, and failure to appreciate the legal consequences of prior adjudication by competent revenue forums. On the contrary, although the reasoning of the learned Trial Court may not be elaborate on all aspects, its conclusions are firmly rooted in evidence, consistent with the conduct of the parties, and aligned with settled principles of law. Such findings, being based on proper appreciation of evidence and consistent with settled principles of law,

did not suffer from any perversity or illegality so as to warrant interference by the Appellate Court. The reversal thereof, in a routine and cursory manner, cannot be sustained.

14. Consequently, this revision petition is allowed, the judgment and decree dated 09.07.2021 passed by the learned Appellate Court is set aside, and the judgment and decree dated 21.06.2001 passed by the learned Trial Court is restored.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan